

Chief Justice's Court

Case :- WRIT - C No. - 11442 of 2011

Petitioner :- Shri Balajee Laboratories

Respondent :- Executive Engineer And Others

Petitioner Counsel :- Saurab. A. Mishra, Chaudhary Subhash
Kumar

Respondent Counsel :- Rajesh Tripathi

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Vineet Saran, J.

Petitioners' representative to appear before respondent no.1 - Executive Engineer, District Jalaun on 28th February, 2011. Respondent no.1 to inform petitioners if there are any hindrances in giving electricity supply to the petitioners.

Place the matter on Thursday i.e. on 3rd of March, 2011 as fresh for final disposal.

Order Date :- 24.2.2011

VMA

(F.I. Rebello, C.J.)

(Vineet Saran, J.)

Court No. - 3

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Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

Heard Mr. O.P. Chaturvedi, learned Advocate holding brief for Mr. Chaudhary Subhash Kumar, learned counsel appearing for the petitioner, and learned standing counsel for the respondents.

Petitioner's contention before this Court is that it is the transferee of the property and any dues meant for the previous owner cannot be paid by him, in view of the judgement of the Supreme Court reported in **2011 (1) AWC 298 (SC) (Haryana State Electricity Board Vs. Hanuman Rice Mills and others)**, wherein it has been held that electricity dues of previous owner cannot be recovered from present occupier of premises in absence of statutory rules or terms and conditions of supply authorising such recovery.

However, we find from Clause 4.3 (h) of The U.P. Electricity Supply Code, 2005 which prescribes as follows:

"4.3 New Connections-General:

- (a).....
- (b).....
- (c).....
- (d).....
- (e).....
- (f).....
- (g)

(h) A new connection to such sub-divided premises shall be given only after the share of outstanding dues attributed to such sub-divided premises, is duly paid by the applicant. Licensee shall not refuse connection to an applicant only on the ground that, dues on the other portions(s) of such premises have not been paid, nor shall the licensee demand record of last paid bills of other portions(s) from such applicants."

Upon hearing learned counsel for the parties and going through the provision, we do not find any lack of power to the U.P. Power Corporation for recovering such amount. In this case, there is no inconsistency between the aforesaid judgement and applicability of the statute. Thus, we do not find any infirmity in connection with claim of U.P. Power Corporation against the petitioner and as such no relief can be granted in favour of the petitioner in this writ petition.

Having so, the writ petition is dismissed, however, without imposing any cost.

Order Date :- 15.3.2011

Sandeep